

24CMCV01093 24CMCV01093

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-30

Motion: DEFENDANTS LANDON WHITNEY AND KIMBERLY WHITNEY'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

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Case Number: 24CMCV01093 Hearing Date: June 30, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

STACY DILLOW,

Plaintiff,

vs.

LANDON

WHITNEY, et al.,

Defendants.

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CASE NO: 24CMCV01093

[TENTATIVE]

ORDER RE: DEFENDANTS LANDON WHITNEY AND KIMBERLY WHITNEY'S MOTION FOR
DETERMINATION OF GOOD FAITH SETTLEMENT

Dept.

A

DATE:

June 30, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 07/17/2024

1st

AMENDED COMPLAINT FILED: 02/13/2026

TRIAL:

11/16/2026

MOVING

PARTY: Defendants Landon

Whitney and Kimberly Whitney

RESPONDING

PARTY: Defendant Sami Khatib; Urban

Worldwide LA; and Radii 360, Inc.

1. Background

This is a motor vehicle collision action. Plaintiff Stacy Dillow ("Plaintiff") alleges that on July 19, 2022, she was a passenger in a vehicle being driven by defendant Sami Khatib. Plaintiff alleges that defendant Landon Whitney was driving behind Defendant Khatib's vehicle and caused a rear-end collision with Defendant Khatib's vehicle. Plaintiff alleges that defendants Landon Whitney; Kimberly Whitney; Sami Khatib; Urban Worldwide LA; and Radii 360, Inc. dba Opulux Car Service negligently operated, serviced, repaired, maintained, entrusted and/or inspected their vehicles so as to cause Plaintiff personal injury.

2. Discussion

Defendants

Landon Whitney and Kimberly Whitney (collectively, "Settling Defendants") move for determination of a good faith settlement between Settling Defendants and Plaintiff. Settling Defendants contend that they have entered into a settlement agreement with Plaintiff wherein Settling Defendants will pay Plaintiff \$100,000 in exchange for dismissal of Plaintiff's claims against Settling Defendants. In opposition, defendants Sami Khatib; Urban Worldwide LA; and Radii 360, Inc. dba Opulux Car Service (collectively, "Respondents") contend that the settlement amount is not roughly proportionate with Settling

Defendants' liability, particularly considering the existing cross-complaints against Settling Defendants.

A plaintiff may settle with one of several joint tortfeasors or co-obligors on a contract without releasing the others. Provided it is in "good faith," the settlement discharges the settling defendant from liability to the other defendants for equitable contribution or comparative indemnity but not for contractual indemnity. (Code Civ. Proc., §§ 877, 877.6.)

"Good faith" does not have a precise definition, but may be determined by taking into account a number of factors, including "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (Tech-Bilt, Inc. v. Woodward-Clyde & Assocs. (1985) 38 Cal.3d 488, 499 (Tech-Bilt).)

Another key factor is the settling tortfeasor's potential liability for indemnity to joint tortfeasors. (Far West Fin'l Corp. v. D & S Co. (1988) 46 Cal.3d 796, 816, fn. 16.) The party asserting the lack of good faith has the burden of proof on that issue. (Code. Civ. Proc., § 877.6, subd. (d).)

Settling

Defendants state that the \$100,000 settlement amount is roughly proportionate to their liability in this action because Plaintiff came to this agreement with Settling Defendants and therefore the amount is reflective of Plaintiff's assessment of Settling Defendants' potential liability. However, Settling Defendants provide no authority for this proposition. The court finds that this reading of the law is inconsistent with Tech-Bilt. If the settlement amount inherently reflected a rough approximation of Settling Defendants' liability, this factor would be irrelevant to the determination of a good faith settlement because it would be fulfilled in all settlement offers. The court declines to read Tech-Bilt in such a manner as to render a portion of the court's opinion in that case superfluous.

Settling

Defendants do not provide any other information tending to show that the \$100,000 settlement amount is roughly proportionate to their liability in this action. Settling Defendants concede that their liability is disputed.

Respondents provide the statement of damages served by Plaintiff, which shows claimed damages totaling \$6,350,000. Based on the allegations in the complaint and disputed liability, the court finds that the \$100,000 is not roughly proportionate to Settling Defendants' liability in this action. The court finds that, even considering disputed liability, the insurance policy limit of Settling Defendants of \$100,000, and the recognition that Settling Defendants should pay less at settlement than if they were found liable after trial, the settlement agreement was not made in good faith.

The court will

therefore deny Settling Defendants' motion for determination of good faith settlement.

3. Conclusion

Based on the

foregoing, the court DENIES Defendants Landon Whitney and Kimberly Whitney's motion for determination of good faith settlement.

Settling Defendants are ordered to give notice.

IT IS SO ORDERED.

DATED: June 30, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court